

STATE OF NEW YORK

4841--A

2025-2026 Regular Sessions

IN SENATE

February 13, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT establishing the "blue-ribbon commission on the future of New York state's service delivery system for individuals with intellectual and developmental disabilities act"; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "blue-ribbon commission on the future of New York state's service
3 delivery system for individuals with intellectual and developmental
4 disabilities act".

5 § 2. A temporary commission, to be known as the "blue-ribbon commis-
6 sion on the future of New York state's service delivery system for indi-
7 viduals with intellectual and developmental disabilities", hereinafter
8 referred to as the "commission", is hereby established to conduct a
9 comprehensive study and prepare a report to examine, evaluate and make
10 recommendations for systemic reforms to ensure a sustainable set of
11 supports and services that meets the needs of all individuals with
12 intellectual and developmental disabilities.

13 § 3. 1. The commission shall consist of fifteen members appointed by
14 the governor as follows:

15 (a) two members who are individuals with developmental or intellectual
16 disabilities; one of whom must represent a self-advocacy group for
17 people with intellectual and developmental disabilities;

18 (b) one member who is a representative of organized labor that repres-
19 ents a facility operated by the office for people with developmental
20 disabilities;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) one member who is a representative of a provider agency that is
2 certified by the office for people with developmental disabilities;

3 (d) one member who is a not-for-profit housing developer with experi-
4 ence building a supervised living facility or a supportive living facil-
5 ity as such terms are defined in section 1.03 of the mental hygiene law,
6 or a group home operated by a provider agency certified by the office
7 for people with developmental disabilities;

8 (e) one member who is a representative of an organization established
9 by section forty-four hundred three-g of the public health law;

10 (f) one member who is a direct support professional certified by the
11 office for people with developmental disabilities;

12 (g) two members upon recommendation of the temporary president of the
13 senate;

14 (h) one member upon recommendation of the minority leader of the
15 senate;

16 (i) two members upon recommendation of the speaker of the assembly;

17 (j) one member upon recommendation of the minority leader of the
18 assembly;

19 (k) one member who is the commissioner of the office for people with
20 developmental disabilities or such commissioner's designee; and

21 (l) one member who is the chief disability officer or such chief disa-
22 bility officer's designee.

23 2. (a) At least one-third of the membership of the commission shall
24 consist of consumer representatives, including persons with develop-
25 mental disabilities, or their parents or guardians.

26 (b) At least one member shall be an immediate relative or guardian of
27 an individual with a developmental disability who resides or previously
28 resided in a community-based residential setting, or shall be an indi-
29 vidual with a developmental disability who resides or previously resided
30 in a community-based residential setting.

31 3. The commissioner of the office for people with developmental disa-
32 bilities shall serve as the chair of the commission. Additionally, the
33 commission shall elect a vice-chair and a secretary from amongst its
34 members. Vacancies in the membership of the commission and among its
35 officers shall be filled in the manner provided for original appoint-
36 ments.

37 4. The members of the commission shall receive no compensation for
38 their services, but shall be allowed their actual and necessary expenses
39 incurred in the performance of their duties hereunder.

40 § 4. The study shall examine systemic reforms to ensure a sustainable
41 set of supports and services that meets the evolving needs of all indi-
42 viduals with intellectual and developmental disabilities, including but
43 not limited to:

44 1. solutions to address the recruitment and retention of the direct
45 care workforce;

46 2. access to person centered supports and services that reduce racial
47 and socio-economic inequities and disparities and anticipates changing
48 demographics of the population;

49 3. technology and infrastructure needs, including potential future
50 needs and uses to improve effectiveness of the service system;

51 4. the evolving service needs of individuals with intellectual and
52 developmental disabilities, especially those with co-occurring behav-
53 ioral health needs and other cross-systems issues;

54 5. evolving housing needs and opportunities, that support the state's
55 Olmstead plan and independent living in community-based settings;

1 6. increasing competitive, integrated employment for individuals with
2 intellectual and developmental disabilities.

3 § 5. Not later than fifteen months after the effective date of this
4 act, the commission shall prepare and submit to the governor, the tempo-
5 rary president of the senate and the speaker of the assembly a report of
6 the study's findings, together with specific recommendations for system-
7 ic reforms to ensure a sustainable set of supports and services that
8 meets the needs of all individuals with intellectual and developmental
9 disabilities.

10 § 6. This act shall take effect immediately and shall expire and be
11 deemed repealed two years after it shall have become a law.